

BEFORE THE FEDERAL MARITIME COMMISSION
DOCKET NO. 25-26
Roger Waterloo d/b/a EcoBamboo, Complainant,
v.
Ship4wd, Respondent.

Date: September 26, 2025

COMPLAINANT’S MOTION FOR DEFAULT DETERMINATION

To the Honorable Linda S. Harris Crovella, Administrative Law Judge:

Complainant, Roger Waterloo d/b/a EcoBamboo, respectfully moves for a default determination pursuant to 46 C.F.R. §§ 502.62(b) and 502.64(a), based on Respondent’s failure to file a timely Answer.

Procedural History

1. On August 30, 2025, Complainant served the Complaint directly to Respondent Ship4wd via secure link, in accordance with Commission rules.
2. On September 2, 2025, the Commission’s Secretary received the same link.
3. On September 3, 2025, Complainant re-sent the link to both the Commission and Respondent.
4. On September 8, 2025, Respondent’s representative, Mr. Miletsky, confirmed receipt of the Complaint.
5. On September 9, 2025, the Commission issued its own service notice.

This sequence confirms that both the Commission and Ship4wd had access to the Complaint prior to September 9. Respondent, having received the Complaint no later than September 8, was obligated to file an Answer within the regulatory timeframe.

Legal Basis

Under 46 C.F.R. § 502.64(a), a Respondent must file an Answer within 25 days of service. Service by the Complainant is required and effective, and the Commission’s subsequent service notice does not reset the deadline.

Proof of service (see Formal Complaint, page 67) including Respondent’s confirmation (see CX-1 – Proof of Service to Ship4wd) establish that service occurred on August 30, 2025, and was acknowledged by September 8, 2025. Accordingly, Respondent’s Answer was due no later than September 24, 2025.

Pursuant to 46 C.F.R. § 502.62(b), failure to respond within the prescribed time may result in a default decision. Respondent has failed to file an Answer within the required timeframe and is now in default.

Request for Relief

For the foregoing reasons, Complainant respectfully requests that the Commission:

1. Enter a default determination against Respondent Ship4wd;
2. Proceed to evaluate the Complaint on the merits; and
3. Grant such other relief as the Commission deems just and proper.

Respectfully submitted,



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Certificate of Service

I hereby certify that on this 26th day of September, 2025, I caused a true and correct copy of the foregoing *Motion for Default Determination* to be served on Respondent Ship4wd by electronic mail addressed to Respondent's counsel, Wayne Rohde / WRohde@cozen.com.



Roger Waterloo